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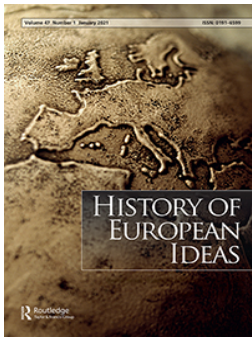
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Leviathan Inc.: Hobbes on the nature and person of the state

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ABSTRACT

This article aspires to make two original contributions to the vast literature on Hobbes's account of the nature and person of the commonwealth: (1) I provide the first systematic analysis of his changing conception of 'person'; and (2) use it to show that those who claim that the Hobbesian commonwealth is created by personation by fiction misconstrue his theory of the state. Whereas *Elements/De Cive* advance a metaphysics-based distinction between individuals ('natural persons') and corporations ('civil persons'), from *Leviathan* onwards Hobbes contrasts individuals acting in their own name ('natural persons') with representatives ('artificial persons'). These changes notwithstanding, Hobbes retains the same corporate conception of the state throughout. On the prevailing 'fictionalist' interpretation, the sovereign brings the commonwealth into existence by representing it. I argue, rather, that as an incorporation of natural persons, the commonwealth becomes one person through the authorized (i.e. non-fictitious) representation of each constituent member singly by one common representative ('the sovereign').

KEYWORDS

Thomas Hobbes; theory of the state; state personality; corporation; representation; authorization

1. Introduction

The question of what kind of person the Hobbesian state is has long troubled commentators. The majority position now seems to be that the commonwealth is a 'person by fiction'¹ or a 'purely fictional Person'.² According to Hobbes, some subject *S* is personated by fiction by a representative *R* whenever *S* has not authorized *R* to speak or act in *S*'s name. Absent such authorization, *R*'s words and actions are attributed to *S* not truly, but 'by Fiction' (L 16.1).³ Inanimate things, such

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¹Runciman, 'What Kind of Person is Hobbes's state?', 268.

²Skinner, 'Hobbes on Persons, Authors, and Representatives', 174; also Skinner, *From Humanism to Hobbes*, 9, 221, 357–60, 366. Other notable proponents of the fictionalist reading include von Gierke, *Natural Law and the Theory of Society*, 44–7; Brito Vieira, *The Elements of Representation in Hobbes*, 170–80; Newey, *The Routledge Guidebook to Hobbes's Leviathan*, 172–85; Abizadeh, 'The Representation of Hobbesian Sovereignty', 129–35; Turner, *The Corporate Commonwealth*, 213–14; Fleming, 'The Two Faces of Personhood'. This article will treat 'state' and 'commonwealth' as interchangeable, and as identical with the collective/corporate body of the people.

³Abbreviations and editions used of Hobbes's works:

B: *Behemoth, or The Long Parliament*, ed. Paul Seaward (Oxford: Clarendon Press, 2009). **DCv:** *On the Citizen*, ed. Richard Tuck, transl. Michael Silverthorne (Cambridge: Cambridge University Press, 1998). **DH:** 'De Homine', in *Man and Citizen*, ed. Bernard Gert (Indianapolis: Hackett, 1991), 33–85. **DPS:** 'A Dialogue between a Philosopher and a Student, of the Common Laws of England', in *Thomas Hobbes: Writings on Common Law and Hereditary Right*, ed. Alan Cromartie and Quentin Skinner (Oxford: Clarendon Press, 2005), 1–146. **EL:** *The Elements of Law, Natural and Politic*, second edition, ed. Ferdinand Tönnies (London: Frank Cass, 1969). **EW:** *The English Works of Thomas Hobbes of Malmesbury*, 11 vols, ed. William Molesworth (London: John Bohn, 1839–1845). **L:** *Leviathan*, 3 vols, ed. Noel Malcolm (Oxford: Clarendon Press, 2012). **LL:** 'Latin *Leviathan*', in *Leviathan*, ed. Noel Malcolm (Oxford: Clarendon Press, 2012). **LLA:** 'Appendices to *Leviathan*', in *Leviathan*, ed. Noel Malcolm (Oxford: Clarendon Press, 2012), 1142–1243.

as hospitals and bridges, ‘cannot be Authors, nor therefore give Authority to their Actors’ (L 16.9). For this reason, inanimate things can only be personated by fiction. On the prevailing ‘fictionalist’ interpretation, the commonwealth (i.e. the people understood as a single collective body) is likewise personated by the sovereign by fiction. The commonwealth itself cannot possibly have authorized the sovereign to represent it because, Hobbes insists, the people incorporated cannot speak or act except via their representative. Representation by the sovereign is a precondition of the commonwealth’s capacity to act; authorization being an action, this precludes authorized (i.e. non-fictional) representation.

This article will not challenge *these* claims: properly understood, they are tenable. Rather, I will counter a further claim defended by proponents of the fictionalist interpretation: that the commonwealth comes into existence by being represented by the sovereign. It is commonly maintained that the commonwealth is a person by fiction since it exists as a person only insofar as it is personated by the sovereign – notwithstanding Hobbes’s claim that representation by fiction is impossible outside the state.⁴ Some have inferred from this that the commonwealth itself has a fictional character.⁵ My contention is that the fictionalist interpretation misconstrues Hobbes’s theory of the state. It fails to appreciate that personation occurs at two levels: the sovereign represents each individual citizen, thus turning the multitude into one person (‘a commonwealth’), *and* he bears the person of the commonwealth thus formed. These two instances of personation, I argue, are different in kind, and only the second relation of representation can be said to be fictional. The corporate unity formed by individual authorization of a common representative is one person in virtue of its capacity to speak and act as one – as all its constituent members have bound themselves to accept as theirs whatever their common representative shall do. The fictionalist interpretation wrongly treats the commonwealth as existing apart from the multitude of individuals who compose it. Unlike personations of non-corporate entities like bridges, hospitals, children, and false idols, the person of the commonwealth is not brought into being by representation by fiction.

I bolster my novel interpretation through a second original contribution to the literature. This article provides the first systematic analysis of the dramatic changes in Hobbes’s account and typology of ‘person’, and hence of state personality, between the early works and *Leviathan*.⁶ Hobbes never wavers from regarding ‘persons’ foremost as *agents* – entities that can be said to speak and act.⁷ But his views on what kinds of persons exist, and in what sense they are agents, alter fundamentally between *De Cive* (1642/1647) and *Leviathan* (1651). From *Leviathan* onwards, Hobbes advances what we may call a Ciceronian conception of agent-persons, linked to his new theory of personation by representation. ‘A *Person*’, Hobbes declares in allusion to Cicero, ‘is the same that an *Actor* is’ wearing a *persona* or mask (L 16.3). A person is thus someone who ‘acteth any thing in his own or another’s name, or by his own or another’s authority’ (EW 4: 310). Whoever acts

⁴E.g. Runciman, ‘What Kind of Person’, 272–4; Abizadeh, ‘The Representation of Hobbesian Sovereignty’, 133; Newey, *Hobbes’s Leviathan*, 181–82.

⁵E.g. Runciman, ‘The Concept of the State’, 36; Vieira, *The Elements of Representation*, 170–80; Brito Vieira, ‘Making Up and Making Real’, Newey, *Hobbes’s Leviathan*, 178; Skinner, *From Humanism to Hobbes*, 359–60. Other disagreements in their readings of Hobbes notwithstanding, all scholars here associated with the fictionalist reading concur that the commonwealth (i.e. the people as one person) comes into being by being represented as such by the sovereign – i.e. through personation by fiction.

⁶Hobbes’s pre-*Leviathan* writings on persons and state personality have received little sustained scholarly attention. Admirable analyses of how the union of natural individuals into one person is achieved prior to *Leviathan*’s novel doctrine of personation by representation are found in Pitkin, ‘Hobbes’s Concept of representation – II’, 903–7; and Douglass, ‘Authorisation and Representation Before *Leviathan*’, 30–47. Crignon, ‘Representation and the Person of the State’, 48–74 documents Hobbes’s phasing out of the term ‘body politic’, prevalent in *Elements*, for ‘person’ in later works. All say little, however, about what Hobbes meant by ‘person’ before 1651 and how representation altered his conception of ‘person’. Tricaud enumerates distinct usages of person from *Elements* to the Latin *Leviathan* in ‘An Investigation Concerning the Usage of the Words “Person” and “Persona” in the Political Treatises of Hobbes’, 89–98. Yet despite his self-proclaimed ‘philological’ method, Tricaud assimilates these usages into fixed cross-textual categories. He consequently misses that Hobbes drops the term ‘civil person’ from *Leviathan* onwards and overlooks concomitant conceptual changes. For a critique of Tricaud’s categorizations, see Simendic, ‘Thomas Hobbes’s Person as Persona’, 150–51.

⁷List and Pettit, *Group Agency*, 171–72 hence attribute a ‘performative conception of personhood’ to Hobbes: ‘what makes an agent a person is not what the agent is but what the agent does’.

in his own name is called a ‘natural’ person; whoever acts in the name of someone or something else is an ‘artificial’ or ‘representative’ person. The Ciceronian conception thus differentiates persons by whether they bear their own *persona* or someone else’s, not by their metaphysical status.

An irreducibly different account of personhood is found in *Elements* (1640) and *De Cive*. Those texts portray a person as anyone or anything with independent legal standing – any entity to whom words and actions can be ascribed in law. Call this the Juristic conception of agent-persons. Hobbes distinguishes between two kinds of juristic persons: natural and civil ones. On the Juristic conception, ‘natural persons’ are rational agents capable of unmediated action. ‘Civil persons’ are incorporations of natural persons. Thus, *Elements* explores ‘how a multitude of persons natural are united by covenants into one person civil, or body politic’ (EL 20.1). As social constructs, civil persons are not capable of unmediated action. Some established and binding rule is necessary to determine which actions performed by which natural persons should be regarded as those of the civil person. The Juristic conception thus differentiates persons by their metaphysical status: whether their capacity for agency depends on some artifice or not. Observe that ‘natural person’ means something else on the Juristic conception than on the Ciceronian one. A Juristic natural person is any rational agent ‘naturally’ capable of acting; a Ciceronian natural person is anyone acting in their own name. The two can come apart. I shall therefore henceforth add subscripts: _J (Juristic) and _C (Ciceronian).

My pioneering analysis of Hobbes’s changing conception of person sheds new light on the controverted question of what gives the commonwealth personality. In the early texts, a plurality of natural-_J persons become one civil person by each submitting their will to another natural-_J or civil person (‘the sovereign’). Incorporation requires formation of a single will, achieved by each constituent member promising simple obedience to the sovereign. In *Leviathan*, a multitude becomes one person through individual authorization of a common representative (‘the sovereign’) to carry their persons jointly. Authorized representation replaces promises of simple obedience as the means to ‘reduce all their Wills ... unto one Will’ (L 17.13). *Leviathan*’s novel doctrine of personation by representation is in many ways an improvement: it offers a parsimonious and capacious explanation of how a multitude becomes one person and clarifies the relation between the sovereign and the commonwealth. Yet it also obscures the corporate nature of the Hobbesian commonwealth and conceals that personation occurs at two levels. It does not help that the English *Leviathan* incoherently states that the sovereign bears only one person – that of the commonwealth; a glitch corrected in the 1668 Latin *Leviathan*. To grasp Hobbes’s theory of the state, I conclude, we best turn to texts other than the English *Leviathan*.

2. The commonwealth as a civil person

Enduring scholarly perplexity about the nature of Hobbesian state personality is made possible by Hobbes’s apparent refusal to settle the question himself, notwithstanding his general commitment to definitional clarity and precision. As Runciman laments, ‘though he states often that the “Commonwealth” is a person, he never states explicitly what kind of person it is’.⁸ At least, we may add, not in *Leviathan*. Hobbes’s evasiveness about the nature of state personality in his magnum opus contrasts sharply with his triumphant declarations in earlier texts, which predate his trailblazing doctrine of personation by representation: ‘every *commonwealth* is a *civil person*’ (DCv 5.10). Pre-*Leviathan* passages are rarely invoked to elucidate Hobbes’s views on state personality, perhaps because they do not evidently align with his mature theory of persons. Indeed, the notion ‘civil person’ is abandoned altogether from *Leviathan* onwards. In what follows, I aim to show that the early texts nonetheless elucidate Hobbes’s theory of the nature and person of the state.

Hobbes, never shy to talk up his intellectual discoveries, makes a startling claim towards the end of *Elements*. He proclaims to have been the first to realize that the state, irrespective of its regime type, is one civil person. Previous writers suffered from

⁸Runciman, ‘What Kind of Person’, 274.

... want of understanding of what is meant by this word *body politic*, and how it signifieth not the concord, but the union of many men. And though in the charters of subordinate corporations, a corporation be declared to be one person in law, yet the same hath not been taken notice of in the body of a commonwealth or city, nor have any of those innumerable writers of politics observed any such union. (EL 27.7)

Skinner considers this claim ‘admittedly somewhat exaggerated’.⁹ The idea of corporate personality was foreign to classical Roman law.¹⁰ But during the high middle ages, civilian lawyers centered in Bologna developed complex legal theories of corporations.¹¹ The generic term for such a juristic corporation was *universitas*. The first generations of lawyers, writing extensive glosses on the Roman law, generally considered corporations as nothing above the individuals composing it (citing *Digest* 3.4.7). Later generations (known as Commentators or post-glossators) started to regard the *universitas* as an abstraction, as the whole in which a collection of individuals is united.¹² The abstract nature of the *universitas* was used to explain the sempiternal nature of corporations: the corporation lives on even as its members die. It also allowed the jurists to clarify how actions could be imputed to the whole as such, including to minors and other non-consenting individuals. The civilians Bartolus and Baldus called both the people (*populus*) and the state (*civitas*) corporations and one single person in law.¹³ The juristic language of corporations was taken over by the sixteenth-century Monarchomach writers Beza and the author of *Vindiciae, contra tyrannos*, as well as by Althusius. They located sovereignty in the political community as such, arguing that rulers were merely vassals entrusted with political power, which the people could revoke upon abuse. Once regarded as an abstraction and a single person, it made sense to call the *universitas* a fictional person.¹⁴ Althusius argued that the political ‘community is different from the individual persons of a community, although it is often considered to be a representational and fictional person’.¹⁵ In his view, the *civitas* is ‘a representational person and represents men collectively, not individually’.¹⁶ Hobbes was thus not the first to identify the state with a corporate person; his claim of originality does not, moreover, recur in later texts.¹⁷

Hobbes never wavered from holding that the state is a kind of corporation and one person in virtue of it. The early works designate the commonwealth a *persona civilis*:

A Union so made is called a *commonwealth* or *civil society* and also a *civil person* [*persona civilis*]; for since there is *one will* of all of them, it is to be taken as *one person*; and is to be distinguished and differentiated by a *unique name* from all particular men, having its own rights and its own property. (DCv 5.9; also EL 19.8; DCv 7.14)

A civil person is essentially a corporate aggregate of a multitude of natural-*j* persons (EL 20.1; DCv 5.12). Hobbes primarily invokes state personality to explain how human collectives can be said to speak and act as one, rather than to explain their legal continuity over time. In this respect, he followed both Bartolus and the Monarchomach followers of the Bartolists.¹⁸ Both natural-*j* and civil persons are agents: words and actions can properly be ascribed to them. The two types of persons differ in how they can perform actions. As rational agents endowed with a will, natural-*j* persons have a natural capacity to act, not dependent on any social or legal construction. This is not true

⁹Skinner, *From Humanism to Hobbes*, 42; also Brito Vieira, *The Elements of Representation*, 160.

¹⁰Ryan, ‘Bartolus of Sassoferrato and Free Cities’, 84: ‘Contrary to what is occasionally implied in more general studies, there was no readily available theory of human corporations in Roman law. Roman law, in fact, is obstinately unresponsive to the attractions of treating groups of people as corporates individuals.’ Also Duff, *Personality in Roman Private Law*, 48–50.

¹¹Canning, ‘The Corporation in the Political’, 9–32.

¹²Canning, *The Political Thought of Baldus de Ubaldis*, 186–87.

¹³Canning, *The Political Thought*, 189.

¹⁴Kantorowicz, *The King’s Two Bodies*, 302–6.

¹⁵Althusius, *Politica*, 5.27.

¹⁶Althusius, *Politica*, 5.9.

¹⁷For a more complete overview of pre-Hobbesian reflections on the nature of the body politic, especially within the Aristotelian tradition, see Smith, ‘Democracy and the Body Politic’, 167–83. On the history of the idea of the state, see Harding, ‘The Origins of the Concept of the State’, 57–72; Skinner, ‘From the State of Princes to the Person of the State’, 368–413; Skinner, *From Humanism to Hobbes*, 341–83.

¹⁸Skinner, ‘The State of Princes’, 389–90.

for incorporated collectives of natural-*j* persons. They can act as one person only through a fixed decision mechanism that can reach conclusions binding each of its members ('one artificial will').

Hobbes invoked the juridical notion '*persona civilis*' to elucidate the nature and preconditions of a commonwealth. Previous writers, he lamented, had failed to grasp the essence of the state because they kept confusing two senses of the term 'people'. 'The people of France' designates the throng of individuals inhabiting that territory. Regarded as a multitude of individual persons, the people cannot have collective rights or property. And while a crowd can perform a multitude of individual actions, they cannot jointly perform one action (EL 21.11; DCv 6.1; L 11.20). A crowd

cannot make a promise or an agreement, acquire or transfer a right, do, have, possess, and so on, except separately or as individuals, so that there are as many promises, agreements, rights, and actions, as there are men. For this reason a crowd is not a natural person. (DCv 6.1n)

'The French rebel' is short for all the single acts of sedition performed by individual French citizens. 'France formally declares war', by contrast, is one action attributed to the people as a collective. Only *qua* civil person can the people perform a single act collectively.¹⁹

To become one body politic – one civil person, capable of acting as one – the multitude must not simply *associate* but also *incorporate* itself. An association, or temporary league, is a multitude collaborating to achieve a common end. An association lacks one will and is hence not one person. Rather, it consists of a temporary confluence of 'many wills to the producing of one effect' (EL 12.7); they act in unison rather than as one.²⁰ The association falls apart once individual wills begin to diverge. Therefore, 'a *combination* of several wills in the same end is not adequate to the preservation of peace and stable defence' (DCv 5.6). The commonwealth is more than an association or concord of wills; it is a corporate union endowed with a single will. 'A COMMONWEALTH, then, (to define it) is *one person*, whose *will*, by the agreement of several men, is to be taken as the *will* of them all' (DCv 5.9; also DCv 10.5).

Whose will is to be taken for the will of all? Prior to the development of his theory of representation, Hobbes maintained that union is achieved by having each individual 'agree that the will of some one man or the consenting wills of a majority of themselves is to be taken as the will of all' (DCv 6.1n). Each citizen must submit 'his *will* to the will of a *single* other' (DCv 5.6). That single other is called the sovereign. This submission consists in obligating oneself to simply obey the sovereign and to make available all one's strength and resources to him. The sovereign thus empowered in turn *de facto* reduces 'the wills of individuals to unity and concord' through force and fear (DCv 5.8; also EL 19.7; L 17.13). The sovereign is either a natural-*j* or a civil person (a sovereign assembly). A sovereign assembly is one person only insofar as it has a fixed decision-making procedure, e.g. majority rule, that enable it to reach conclusions binding each assembly member. 'Soveraigne Assemblies, if they have but one voice, though they be many men, yet are they but one person' (B 319). A plurality of natural-*j* persons thus becomes one civil person by 'involving or including the wills of many ... in the will of one man, or of one COUNCIL' – i.e. by submitting their private wills to another natural-*j* or civil person (a monarch or sovereign assembly) (EL 19.6).²¹

What then is the civil person of the state? The early works sometimes appear to equate the sovereign with the commonwealth. Consider the definition of 'the people incorporated' in *Elements*: 'a person civil, that is to say, either one man, or one council, in the will whereof is included and involved the will of every one in particular' (EL 21.11). Sovereign and commonwealth are in fact materially identical only in democracies, where the people as a corporate aggregate holds sovereign power.²² And even there the sovereign body of the people (i.e. the democratic assembly) and the civil person of the commonwealth are formally distinct (EL 21.5).²³ As *De Cive* makes clear, citizens constitute the matter of the commonwealth; the sovereign its form or essence (DCv 17.21). The

¹⁹Copp, 'Hobbes on Artificial Persons and Collective Actions', 580–5.

²⁰On the nature of associations, see also EL 20.4; DCv 5.4; L 22.28.

²¹Also EL 12.8; EL 27.7. The distinction between natural persons and the civil person of an assembly is also found in EL 20.18–19.

²²Douglass, 'Authorisation and Representation', 37–9.

commonwealth would then be the union of form and matter.²⁴ Hobbes's considered view is that individuals unite themselves as one person by submitting their wills to another person ('the sovereign'). The 'BODY POLITIC ... may be defined to be a multitude of men, united as one person by a common power, for their common peace, defence, and benefit' (EL 19.8). Contrary to what is sometimes averred,²⁵ the commonwealth thus has a separate personality distinct from the ruler.

The sovereign and the commonwealth nevertheless share one will. The commonwealth existentially requires a common power. That common authority is needed to oblige dissenters, whose will would otherwise not be included in the will of all. For the same reason, the commonwealth cannot speak or act except by authority of the sovereign. After all, as an artifice, the body politic is not capable of unmediated willing or action. The will of the sovereign is that of the people incorporated since their union was produced by taking the sovereign's will for the will of all. The people as such can therefore neither rebel nor hold the sovereign accountable (DCv 6.1). Again, identity of wills does not entail personal identity. Rather, as *Elements* puts it, the sovereign 'is virtually the whole'.²⁶ A unified body politic endowed with one will requires, furthermore, one indivisible and absolute sovereign. Mixed constitutions are incompatible with the very idea of a commonwealth (EL 27.7; DCv 7.4; L 29.16).

The commonwealth is not a person different in kind than subordinate corporations of citizens (e.g. merchant companies and football clubs). 'Although every *commonwealth* is a *civil person*, not every *civil person* (by converse) is a *commonwealth*' (DCv 5.10). The commonwealth is unique among civil persons in presupposing total subjection. Its members have subjected themselves 'to the will of the group simply and in all things' (DCv 5.10; also EL 19.9). Such 'SIMPLE obedience ... is the greatest obedience that can be given' (DCv 6.13).²⁷ Subordinate corporations are necessarily subject to the laws of that superior incorporation of citizens called 'the commonwealth'. The church, insofar as it is personified and capable of action, is a corporate person as well. Intriguingly, the Hobbesian church is not subordinate to the state. Rather, the church is the self-same incorporation as a commonwealth governed by a Christian ruler: 'a *commonwealth* and a *church* of the same *Christian* men are exactly the same thing under two names' (DCv 17.21).²⁸

The above reconstruction has uncovered the two-part structure of the Hobbesian state. A commonwealth is a multitude united *as one person*. And a multitude becomes one person by having its members submit their wills to *another person*, namely the sovereign. *Leviathan*, I contend, retains this dual structure. Indeed, the idea of the state as an incorporation, created by mutual covenanting, is a fixed feature of the various instalments of Hobbes's political theory. New to *Leviathan* is an account of state-formation and state personality cashed out in terms of representation of, and authorization by, each subject. By showing how this democratic language could support absolutist ends, Hobbes dealt a major rhetorical blow to his parliamentary opponents.²⁹ To achieve these ends, Hobbes radically revamped his account of persons and personation.

²³Prior to *Leviathan*, Hobbes endorsed the idea that every commonwealth was originally a democracy where the people incorporated are sovereign. Upon transferring sovereignty to a monarch or aristocratic assembly 'the people, as a single person' dissolves because incorporation requires a common power (DCv 7.7–12, 16). This may seem puzzling, given Hobbes's habitual equation of the people incorporated with the commonwealth (e.g. DCv 12.8; DCv 13.3). The dissolution of the sovereign body of the people does not, however, mean there is no unified people (i.e. commonwealth) anymore. The latter persists by virtue of sovereign power, now held by a monarch or aristocratic council.

²⁴Cf. Abizadeh, 'The Representation of Hobbesian Sovereignty', 133, who regards the commonwealth as the form imposed on the multitude ('the matter').

²⁵Von Gierke, *Natural Law*, 44, 60–61; Tuck, *The Sleeping Sovereign*, 99–105. Harrington had already interpreted Hobbes as having equated commonwealth and sovereign in *The Commonwealth of Oceana*, 38. My attempts to understand the relation between commonwealth and sovereign have profited from access to Sophie Smith, 'What Makes the State? Covenants, Constructivism and the Shadow of Hobbes' (unpublished manuscript).

²⁶EL 20.18; EL 21.5; EL 27.6. Cf. EL 21.11.

²⁷Also DCv 11.5; L 20.16; L 31.1.

²⁸Also DCv 17.26–28; DCv 18.1; DCv 18.13. For discussion, see Olsthoorn, 'The Theocratic *Leviathan*', 10–28.

²⁹Skinner, 'Hobbes on Persons', 159–68; Skinner, *From Humanism to Hobbes*, 190–221.

3. Persons: actors and agents

Throughout Hobbes's oeuvre, 'person' essentially denotes 'agent'. Yet over time Hobbes developed two distinct conceptions of 'person', each spelling out the same underlying concept of agent-persons in contrasting and mutually irreducible ways. The Juristic conception, found in the early political works, homes in on the ontological status of the agent. Is the person an individual naturally capable of action? Or a social artefact, capable only of mediated action? On the Ciceronian conception, introduced in *Leviathan*, 'person' signifies an actor doing things in their own name or in the name of someone or something else. It asks on whose behalf the actor operates and differentiates persons accordingly, without reference to their metaphysical status. The two conceptions thus classify persons in different ways.

'A Person', *Leviathan* declares, 'is the same that an Actor is' (L 16.3). To support this claim, Hobbes appeals to the alleged etymology of 'person', citing a saying by Cicero.³⁰ *Persona* in Latin meant 'disguise, or outward appearance of a man, counterfeited on the Stage', as well as mask. The term was later used as a synecdoche for the actor herself, Hobbes claims, and extended to non-theatre practices (L 16.3). For as for 'commercial dealings and contract between men not actually present, such artifices are no less necessary in the state than in the theatre' (DH 15.1). Actors impersonate other individuals or things by bearing their *persona* (mask). Hobbes's explication of persons (actors) by reference to *personas* (masks) thus crucially involves an ambiguity, deftly exploited in his theory of personation by representation. A person is anyone carrying a *persona* or mask. Yet an actor playing someone else is surely not identical to the *persona* she wears.³¹ As we shall see, the criteria for personhood differ depending on whether 'person' means actor or *persona* (the 'mask' of the impersonated).

The new Ciceronian conception of person is accompanied at the level of actors by a novel distinction between natural-_C and artificial persons. This typology replaces the earlier similar-sounding contrast between natural-_J and civil persons and should by no means be confused with it. Natural-_C persons act in their own name; artificial persons in the name of another party. *Leviathan* introduces the contrast as follows:

A PERSON, is he, whose words or actions are considered, either as his own, or as representing the words or actions of another man, or of any other thing to whom they are attributed, whether Truly or by Fiction. / When they are considered as his owne, then is he called a *Naturall Person*: And when they are considered as representing the words and actions of another, then is he a *Feigned* or *Artificiall person*. (L 16.1–2)

How to interpret the 'natural-_C vs. artificial person'-distinction? The amount of time commentators have spent scrutinizing the meaning of 'artificial person' stands in stark contrast to its extremely limited occurrence in Hobbes's corpus. The phrase is found only on the first page of chapter XVI of *Leviathan* and nowhere else; a mere three times in total.³² The artifice in 'artificial persons' is best brought out by considering in which sense their opposites are 'natural'. Natural-_J persons are called 'natural' because, unlike civil persons (social constructs), they can act without mediation. Natural-_C persons are not 'natural' in any metaphysical sense. They are called 'natural' insofar as they act in their own name. The artificiality of representatives is not ontological either. A treasurer acting on behalf of a company is both a natural-_J person and a representative. The artifice in representative

³⁰Cicero, *De Oratore* II.102. The passage is cited in L 16.3; LL 16.1; DH 15.1; EW 4: 310–11; LLA 1.83. The idea of persons as stage-actors was of old pedigree. Skinner, *From Humanism to Hobbes*, 12–44.

³¹Abizadeh rejects a sharp distinction between *actors* (representatives) and *personas* (the represented). On his reading, persons are not substances but roles (*personas*) to which representative and represented alike refer. 'A king, who is his own natural person, is also an artificial person in virtue of representing the commonwealth, but he is the same artificial person *qua* representer as the commonwealth is *qua* representee'. In short, 'the king is the state'. Abizadeh, 'Hobbes's Conventionalist Theology', 923.

³²L 16.2 and *marginalia*; L 16.4. The rareness of the phrase may surprise readers accustomed to conflating the technical term 'artificial person' with the metaphor 'artificial man'. The latter expression occurs much more frequently in Hobbes's texts; then again, it picks out an entirely different concept. For an example of where this conflation can lead to, see Tukiainen, 'The Commonwealth as a Person in Hobbes's *Leviathan*', 44–55. On states and corporations as artificial bodies, see Douglass, 'The Body Politic "is a Fictitious Body"', 126–47; Crignon, 'Representation and the Person of the State'.

persons rather resides in the status of their *actions* – they are not, as per usual, considered their own but ‘artificially’ attributed to someone or something else.³³ This evinces that artificial persons are representatives (actors) and never the represented – even if the ‘mask’ worn by the representatives is the *persona* of the represented.³⁴

The Latin *Leviathan* replaces the term ‘artificial person’ with ‘representative person’.³⁵ This change is an improvement. In the English *Leviathan*, every person is a representative – either of oneself or of another: ‘to *Personate*, is to *Act*, or *Represent* himself, or an other’ (L 16.3). The idea of self-representation seems theoretically redundant. It also renders unavailable a salient way of explaining the artifice involved in personating someone else. The Latin *Leviathan* ditches the idea of self-representation:

A person is *he who does things in his own or another’s name*. If in his own, he is a *proper* or natural person; if in another’s, he is the *representative* person of the one in whose name he acts.³⁶

In the Latin *Leviathan*, every non-natural-_C person is a representative of someone or something else; conversely, any representative is an artificial person.

Terminological overlap notwithstanding, the contrasts between natural-_J vs. civil persons and natural-_C vs. representative persons neither align in meaning nor in practice. Not every natural-_J person is a natural-_C person. Suppose both Achmed and Belle are natural-_J persons. Yet if Achmed acts in Belle’s name, then he is in that respect a representative and not a natural-_C person. A monarch is likewise both a representative and a natural-_J person. Moreover, natural-_C persons need not be natural-_J persons. Though the salience of the state, whose representative is authorized by citizens without stint, may make us think differently, corporations can in fact perform actions in their own name as well. For instance, if a representative assembly of a subordinate body decrees anything ‘not warranted by their Letters, or the Lawes’, then this decree is not made in the name of all its corporate members. Unauthorized decrees are instead owned by the assembly itself ‘because the Assembly cannot Represent any man in things unwarranted by their Letters’ (L 22.10; cf. DCv 7.14). Assemblies are civil persons (in pre-*Leviathan* language). But it makes unlawful decrees in its own name, i.e. qua natural-_C person (in *Leviathan*’s language). Even sovereign assemblies, which cannot lack authority, can act in their own name (rather than in name of the people). In an aristocracy, the sovereign assembly is simultaneously its own ‘Councell of State’. In giving counsel to itself, it acts in its own name (L 23.13; cf. LL 23.8). I conclude that incorporations (labelled civil persons before *Leviathan*) can, paradoxically, be either representatives or natural-_C persons, depending on whether they act in their own name or not.³⁷ This further proves that *Leviathan*’s typology of persons is non-metaphysical and irreducible to that found in the earlier texts.

The term ‘civil person’ is mentioned only once in *Leviathan*, early on. Hobbes speaks of ‘men, united by consent, in one person, Naturall or Civill’ – i.e. in the person of a king or sovereign assembly (L 10.3).³⁸ The term ‘person in law’ likewise occurs but once in *Leviathan*. Political subordinate

³³Pitkin, ‘Hobbes’s Concept of Representation – I’, 329.

³⁴Cf. Skinner, ‘Hobbes and the Purely Artificial Person of the State’, 11–12; Abizadeh, ‘The Representation of Hobbesian Sovereignty’, 131. This is not to deny that ‘person’ (in some other sense) can signify both *representatives* (of oneself or of another) and the *represented* (e.g. L 42.3; DH 15.1; LLA 1.83). This article refrains from analyzing Hobbes’s discussion of person in *De Homine* (1658). That text introduces a third duality, between natural-_{DH} and fictitious persons, which is irreducible to either the Ciceronian or the Juristic contrast. *De Homine*’s discussion of ‘persons’ serves to explain how God and inanimate things can be persons and have actions attributed to them, rather than how a multitude becomes one body politic. For this reason, *De Homine* only introduces the ideas of ‘personation’ and ‘authorization’, disregarding ‘representative persons’. For discussion, see Martinich ‘Authorization and Representation in Hobbes’s *Leviathan*’, 327–9.

³⁵Skinner, ‘Hobbes on Persons’, 158.

³⁶LL 16.1: ‘Persona est *is qui suo vel alieno nomine Res agit*. Si suo, Persona *Propria*, sive Naturalis est; si alieno, Persona est ejus, cujus Nomine agit *Representativa*.’

³⁷This conclusion is incompatible with metaphysical explanations of the difference between natural and artificial persons, such as that of Runciman. For him, only ‘natural persons have the ability to take responsibility for their actions’. Runciman, ‘What Kind of Person’, 270.

³⁸That the king is a natural-_J person —i.e. naturally capable of action— should not be conflated with the doctrine of the two capacities/bodies of the king. Hobbes endorses that doctrine in DPS 194: ‘all Sovereigns are said to have a double Capacity;

systems are ‘called *Bodies Politique*, and *Persons in Law*’ (L 22.3). Significantly, both expressions are removed in the Latin *Leviathan* (LL 10.3; LL 22.3). The two phrases are therefore plausibly regarded as remnants of earlier texts, lifted unrevised into *Leviathan* and hence not properly reflective of Hobbes’s new views.³⁹

Leviathan’s novel account of personation by representation greatly enlarges the scope of personation. Anyone or anything can be personated by having some actor put on their *persona* or mask, whether truly or by fiction (L 16.9). This enlargement correlates in revised criteria for personhood. On the Juristic conception, being one person requires having one will. Personating a mob of natural-*j* persons hence requires unifying their wills through binding and enforced agreements. Personation by representation no longer requires a single will – even beings lacking a (known) will, such as bridges and gods, can be personated. Personation by representation hence does not presuppose incorporation. For Hobbes, corporations are essentially ‘systems of citizens’. A bridge is thus personated, not incorporated, by an overseer.⁴⁰ Nor does the personation of dead or fictional figures involve incorporation. Inanimate things acquire personality by having the state assign it a representative (L 16.9–11). On the Ciceronian conception, ‘person’ foremost means ‘actor’: anyone acting in their own or in another’s name. But Hobbes also uses the term ‘person’ to designate the being or entity whose mask (*persona*) the actor carries. This equivocation over the meaning of ‘person’ is effectively exploited in his account of personation by representation. Personated irrational beings and inanimate things are never *actors* (i.e. natural-*c* or artificial persons/representatives) since they are incapable of unmediated action. They can however be *agents* and hence *persons* by having actions performed by their representatives attributed to them.

Leviathan, I have argued, introduces an entirely new and more expansive conception of persons, informed by the idea of representation. Personation by representation sets no limits on who or what can be personated (whether truly or by fiction). In comparison, Hobbes’s earlier account of personation through incorporation was applicable only to collectives of natural-*j* persons. What does *Leviathan*’s new theory of personation by representation imply for that grandest of personated collectives – ‘that great LEVIATHAN called a COMMON-WEALTH’? The next section argues that Hobbes’s theory of the state stayed essentially the same.

4. *Leviathan* incorporated

Elements and *De Cive* equate ‘personation’ with ‘incorporation’: myriad natural-*j* persons become one civil person (‘a commonwealth’) by each submitting their will to a common power (‘the sovereign’).

The making of union consisteth in this, that every man by covenant oblige himself to some one and the same man, or to some one and the same council ... to do those actions, which the said man or council shall command them to do; and to do no action which he or they shall forbid, or command them not to do. (EL 19.7; also DCv 5.6–7)

The underlying supposition is that a multitude is one person only insofar as a single will can be predicated of them all, and that that requires simple obedience to a common authority (DCv 5.9).

viz. a natural Capacity, as he is a Man, and a politick Capacity, as a King’. He gives it a deflationary meaning: ‘Natural Capacity, and politick Capacity signifie no more than private and publick right’ (DPS 197–198; cf. L 19.4; L 28.25). van Apeldoorn, ‘On the Person and Office of the Sovereign’, 49–68.

³⁹On Hobbes’s method of serial composition, see Baumgold, ‘The Difficulties of Hobbes Interpretation’, 832–8.

⁴⁰This non-corporate conception of personation has long puzzled commentators: ‘there appears no Necessity of introducing a *Fiction of Law*, to constitute Persons by whom any of these should be represented. It being more natural to say in plain Terms, that particular Men are impower’d by the Community’ to serve as overseers, Pufendorf writes in *Of the Law of Nature and Nations*, 1.1.12. A similar critique is voiced by Pitkin, ‘Hobbes’s Concept of Representation – I’, 332–33. On the background to Pufendorf’s critique of Hobbes’s theory of personation, see Holland, *The Moral Person of the State*, 65–103; Skinner, *From Humanism to Hobbes*, 363–8.

Leviathan offers an alternative account of personation by representation: a subject *S* becomes a person by acquiring the capacity to perform actions through a representative. Personating a multitude no longer requires promises of simple obedience to unify wills. A multitude rather becomes one by appointing a common representative.

A Multitude of men, are made *One* Person, when they are by one man, or one Person, Represented; so that it be done with the consent of every one of that Multitude in particular. For it is the *Unity* of the Representer, not the *Unity* of the Represented, that maketh the Person *One* ... And *Unity*, cannot otherwise be understood in multitude. (L 16.13)

The changed function of the sovereign in uniting the citizenry into a commonwealth is reflected in a novel definition of 'sovereign'. Rather than as 'the *Man* or *Assembly* to whose will individuals have subjected their will' (DCv 5.11; also DCv 7.7), the sovereign is now defined as the common representative: 'he that carryeth the Person of the Commonwealth' (LL 17.13).

Personation by representation also changes Hobbes's explication of the nature of corporations. Corporations ('regular systems of citizens', in the Latin *Leviathan*'s terminology) are essentially multitudes of natural-*j* persons united as one person.⁴¹ Collectives of individuals compose a 'regular' system in virtue of having a common representative. '*Regular* are those, where One Man, or Assembly of men, is constituted Representative of the whole number' (L 22.1). Irregular systems are 'those which having no Representative [Personam], consist only in concourse of People' (L 22.4). Commonwealths are 'absolute' regular systems of citizens, 'subject to none but their own Representative'. All other collectives of citizens are 'Subordinate to some Sovereign Power' (L 22.2). Like commonwealths, regular subordinate systems have personality if its members share a common representative. As in commonwealths, the representative is either a natural-*j* person or an assembly with a fixed decision mechanism. Even families are a type of subordinate systems, 'united in one Person Representative', usually the father (L 22.26; cf. DCv 9.10).

Representation makes possible the personation, by fiction, of entities without a (known) will – such as hospitals, false idols, and the true God. Fictitious (i.e. non-authorized) representation cannot, however, bring about the incorporation of a mob of natural-*j* persons. To count as a union, capable of acting as one, it must be the case that the same action can be predicated of each member of the multitude. That joint predication requires individual authorization of a common representative. Individuals form a commonwealth by appointing

one Man, or Assembly of men, to beare their Person; and every one to owne, and acknowledge himselfe to be Author of whatsoever he that so beareth their Person, shall Act, or cause to be Acted, in those things which concerne the Common Peace and Safetie; and therein to submit their Wills, every one to his Will, and their Judgements, to his Judgment. (L 17.13)

Why is individual authorization necessary for a mob to acquire a shared capacity for action and hence a single personality? Observe that authorization has a somewhat idiosyncratic meaning for Hobbes. It does not involve alienation or transference of rights (L 21.14). Rather, to authorize another is to accept ownership of their actions. For 'that which in speaking of goods and possessions, is called an *Owner* ... speaking of Actions, is called an *Author*' (L 16.4; also DH 15.2). Authorization always involves representation, as the represented grant 'a Right of doing any Action' in their name to a representative (L 16.4). Individual authorization thus ensures that the sovereign's actions can truly be attributed to each and any citizen:

For if many men agree that, whatsoever be done by some one man or group out of the many, they themselves will hold it as an action of each and every one of them, each and every one will be the author of the actions that the man or group may take. (DH 15.3)

⁴¹On Hobbes on corporations, see Von Gierke, *Natural Law*, 79–84; Lessay, 'La Vocabulaire de la Personne', 167–79; Bobbio, *Thomas Hobbes and the Natural Law Tradition*, 172–96; Brito Vieira, *The Elements of Representation*, 193–8; Olsthoorn, 'The Theocratic *Leviathan*', 21–4.

Whereas in the early works unity requires unconditional duties of obedience, from *Leviathan* onwards, it requires unlimited authorization. Citizens must mutually bind themselves, ‘every man to every man, to Own, and be reputed Author of all, that ... their Sovereigne, shall do’ (L 18.3).⁴² This shift allows *Leviathan* to grant considerable rights of civil disobedience to citizens without undermining the unity of the commonwealth. The convicted criminal who lawfully resists imprisonment, for instance, is nonetheless author of his own punishment (L 28.6). *Leviathan*’s original covenant hence includes two moments. Alienation of right explains the extent of civic duties of obedience; unlimited authorization of the sovereign’s actions secures unification of the multitude into one person.⁴³ Hobbes needs authorization to be unconditional and individual to preclude sovereign injustice. The sovereign cannot possibly injure his citizens because ‘every particular man is Author of all the Sovereigne doth’ – and ‘to do injury to ones selfe, is impossible’ (L 18.6; also DH 15.3).⁴⁴

Hobbes is adamant that the sovereign has not been authorized by the collective body of people since he wants to rule out that the people as a single entity can hold accountable their sovereign representative.⁴⁵ Only the sovereign has the right to personate, or act on behalf of, the commonwealth: ‘the Common-Wealth is no Person, nor has any capacity to doe any thing, but by the Representative, (that is, the Sovereign;)’ (L 26.5; also L 29.16; L 31.1). Likewise, ‘a Common-wealth hath no Will, nor makes no Lawes, but those that are made by the Will of him, or them that have the Sovereign Power’ (L 31.38). The sovereign cannot have been authorized by the people collectively since the multitude is one person only in virtue of having a common representative:

because the Multitude naturally is not *One*, but *Many*; they cannot be understood for one; but many Authors, of every thing, their Representative saith, or doth in their name; Every man giving their common Representer, Authority from himselfe in particular; and owning all the actions the Representer doth. (L 16.14; also L 18.1, 4, 6)

Adherents of the fictionalist interpretation conclude from this that ‘the people/state does not even exist before being represented’ by the sovereign.⁴⁶ The sovereign brings the commonwealth into existence by representing the multitude ‘as a single, corporate “Body Politique”’.⁴⁷ The commonwealth’s representation must hence be fictional – not authorized by the represented party but by a third party: ‘the multitude ... acting as natural persons’.⁴⁸ In the remainder of this article, I argue that these claims misconstrue both how the state is formed and in what relation the ‘disunited Multitude’ and the people incorporated stand (L 18.3).⁴⁹

⁴²Unlimited authorization creates a puzzle, discussed by Lloyd, ‘Authorization and Moral Responsibility’, 169–88. Any act ‘done by Authority’ is ‘done by Commission, or Licence from him whose right it is’ (L 16.4). Citizens presumably lack the right to perform immoral actions. What then warrants Hobbes’s claim that immoral actions performed by the sovereign have likewise been authorized by all citizens (e.g. L 21.7; L 22.15)? One possible solution to this conundrum is that the sovereign is merely being granted the right to act in his subjects’ names: ‘the Right of bearing the Person of them all, is given to him they make Sovereigne’ (L 18.4).

⁴³Green, ‘Authorization and Political Authority in Hobbes’, 25–47.

⁴⁴The authorization argument against sovereign injustice replaces the earlier and weaker consent argument. According to the latter, the sovereign cannot injure his citizens since each of them has consented to his rule.

⁴⁵Skinner, *From Humanism to Hobbes*, 214–17.

⁴⁶Abizadeh, ‘The Representation of Hobbesian Sovereignty’, 134.

⁴⁷*Ibid.*, 133. Skinner has claimed that ‘there is no such thing as the *universitas* or body of the people’. This is a touch imprecise: the multitude is *naturally* many but truly becomes a corporate whole *by convention*. Skinner, ‘Hobbes on Persons’, 163–64, 173; *From Humanism to Hobbes*, 215, 220.

⁴⁸Runciman, ‘What Kind of Person’, 273; also Abizadeh, ‘The Representation of Hobbesian Sovereignty’, 134; Brito Vieira, ‘Performative Imaginaries’, 35.

⁴⁹Incidentally, the metaphysical gloss on the phrase ‘representation by fiction’ should also be rejected. According to Runciman: ‘Representation by fiction is the representation of what are otherwise non-persons ... The fiction is that they truly are persons, truly capable of the actions that personal responsibility requires’. Runciman, ‘What Kind of Person’, 272; also Newey, *Hobbes’s Leviathan*, 175–7. Fictional personation is simply personation not authorized by the represented. When a representative *R* does not act by authority of subject *S*, then the actions of *R* attributed to *S* are not truly ‘owned’ by *S*. Fictional personation does not require that *S* is a ‘non-person’. *S* may be a natural-*j* person who has withheld authorization. Think of an indicted anarchist who, refusing to acknowledge judicial authority, is assigned an attorney, against her will, by the state to represent her in court.

Elements/De Cive, we have seen, conceptualize the commonwealth as a multitude of natural-*j* persons united *as one person* through mutual submission of wills to *another person* (the sovereign). *Leviathan*, I contend, retains this dual structure. Commentators have not always realized that citizens unite themselves, first, in the sovereign – becoming a personified people only consequently. At various points, *Leviathan* states that the multitude becomes one person (‘a commonwealth’) in virtue of sharing ‘any Representative in whom they should be united’ (L 19.18; also L 18.4). ‘[A] Common-wealth’, we read, ‘consisteth of men united in one person, their Sovereign’ (L 33.24; also L 10.3). Hobbes’s definition of a personified church – identical to a Christian commonwealth – captures the same account of incorporation: ‘A company of men professing Christian Religion, united in the person of one Sovereign’ (L 39.4).⁵⁰ A commonwealth can thus be defined, inelegantly, as a multitude united *as one person* by being united *in one person* (‘a common representative’). *Leviathan*’s novel doctrines of representation and authorization change the way in which the sovereign unites the multitude into one person; they leave intact the corporate structure of the commonwealth.

The fictionalist contention that ‘the state [is] ... a fictional person with no existence prior to its representation’ therefore misdescribes the nature and formation of the Hobbesian commonwealth.⁵¹ The state is indeed one person in virtue of representation by the sovereign – yet not representation of *itself*, but of *each constituent member singly*. To form a corporate people, each member must be represented by the same representative: ‘For it is the *Unity* of the Representer, not the *Unity* of the Represented, that maketh the Person *One*’ (L 16.13). What makes the commonwealth one person (i.e. an agent) is its capacity to act as one. The people can act as one only insofar as the actions performed by their common representative can be truly ascribed to each individually. The state is thus created when a mass of individuals authorizes a common representative to act in their names; the collective body of the people does not come into being by being represented as such.

What complicates matters, is that the person formed by having all citizens unite in a common representative is in turn *also* born by the sovereign. The earlier works declare that a common authority is needed to impose form on an otherwise dissolute matter of private wills. While insisting that the sovereign is existentially required for the commonwealth to come into being, *Elements/De Cive* remain silent on the relation between the sovereign and the commonwealth once formed.⁵² *Leviathan* clears up that relation as one of representation: the sovereign represents the commonwealth by bearing its *persona* (the multitude united as one person). Yet this clarification comes at the cost of clouding the two-part structure of the state. Thus, Hobbes speaks of ‘the Common-wealth being in their Representative but one Person’ (L 26.11). Even the well-known definition of ‘the Essence of the Common-wealth’ is ambiguous.

One Person, of whose Acts a great Multitude, by mutuall Covenants one with another, have made themselves every one the Author, to the end he may use the strength and means of them all, as he shall think expedient, for their Peace and Common Defence (L 17.13)

Who or what is this ‘one person’ whose acts the multitude have authorized? Is it the person of the commonwealth and/or the sovereign representative?⁵³ Hobbes may have judged the passage’s ambiguity rhetorically helpful, to strengthen his claim that the people incorporated cannot act except via the sovereign. The earlier texts explicitly distinguished the natural-*j* person or assembly in whom the individuals unite their wills from the civil person/commonwealth thus formed. By discarding the term ‘civil person’ and adding that the sovereign bears the person of the commonwealth, *Leviathan* obscures this.

The English *Leviathan* augments confusion by its conflicting descriptions of the *persona(s)* carried by the sovereign. Does the sovereign exclusively represent the collective body of the

⁵⁰On the identity of church and state, see L 33.24; L 39.5; L 42.79–80; L 42.124; L 47.2; LLA 2.22; EW 4: 337–38.

⁵¹Brito Vieira, *The Elements of Representation*, 171.

⁵²Douglass, ‘Authorisation and Representation’.

⁵³Tellingly, the honorific *Leviathan* is sometimes attributed to the state, sometimes to the sovereign (cf. L Intr. 1; L 17.13; L 28.27). Sagar, ‘What is the Leviathan?’, 75–92.

people?⁵⁴ Or does he represent each citizen singly as well?⁵⁵ The English *Leviathan* is furiously inconsistent on this point. Sometimes Hobbes calls the sovereign ‘the Representative person of a Common-wealth’ (L 25.11). At other times the sovereign is said to be or bear ‘the person of them all’ (L 18.1; L 18.4; L 18.18), ‘their person’ (L 17.13; L 18.3), ‘the person of the people’ (L 19.4; L 29.16; also B 269), and ‘the person of the commonwealth’ (L 26.15). Yet other passages suggest that the sovereign represents each subject singly: ‘the Person representative of all and every one of the Multitude’ (L 19.1), ‘of the whole number’ (L 22.1), ‘of all his own Subjects’ (L 35.15), said ‘to represent them every one’ (L 19.3).

To make things worse, the English *Leviathan* states, early on and incoherently, that the sovereign ‘beareth the Person, and but one Person’ (L 16.13). Unitary representation fits badly with Hobbes’s insistence on individual authorization (it also contradicts the reading advanced here). As authorization involves representation, how can the sovereign be authorized by all citizens singly, yet still carry only one *persona* – presumably that of the people incorporated? Importantly, the clause is dropped in the Latin *Leviathan* (LL 16.10). Indeed, Hobbes now emphasizes that the sovereign ‘bears the person of each individual’ (LL 17.13). ‘Not only can a single man bear the person of a single man’, *De Homine* declares, ‘but one man can also bear many, and many, one’ (DH 15.3). This emendation is highly significant as it can account for the dual structure of the Hobbesian state. On Hobbes’s considered view, the sovereign carries the persons of each citizen singly *and* the person of the collective thus united. The sovereign truly represents each of his subjects singly, as they have authorized his every act. Yet he personates by fiction the collective body thus created (‘the commonwealth’).⁵⁶

The fictionalist thesis that the commonwealth is created by personation by fiction faces a problem, as its proponents acknowledge.⁵⁷ Representation by fiction, Hobbes insists, is possible only within the commonwealth (L 16.9–11; DH 15.3–4). Because it requires third-party authorization, fictional representation presupposes dominium and rights over persons, which ‘has no place but in a State Civill’ (L 16.10).⁵⁸ For this reason, ‘things Inanimate ... cannot be Personated, before there be some state of Civill Government’ (L 16.9). How can the commonwealth be represented by fiction if ‘representation by fiction presupposes that the institutional *framework* [i.e. the state] for such representation already exists’?⁵⁹ Proponents of the fictionalist interpretation are thus compelled to present the commonwealth as an anomalous case of personation by fiction. My interpretation denies that the commonwealth comes into being through representation by fiction and hence sidesteps this quandary.

On the fictionalist interpretation, the sovereign is authorized to represent the commonwealth by a third party, namely ‘the multitude ... acting as natural persons’.⁶⁰ This drives a wedge between the unincorporated multitude and the commonwealth.⁶¹ On my reading, the commonwealth is not something over and above the multitude. The Hobbesian commonwealth is not some fiction or ahistorical abstraction. The commonwealth is simply all the citizens united, bound by mutual pledges of allegiance to their sovereign spokesperson.⁶² And the people incorporated is one person because having a common representative enables the citizens to act in union (rather than in unison). Runciman is thus wrong to declare it a ‘fiction that they can act as a unit’.⁶³ The multitude truly can become an agent-person.

⁵⁴E.g. Runciman, ‘Hobbes’s Theory of Representation’, 19–20; Newey, *Hobbes’s Leviathan*, 185, 198.

⁵⁵E.g. Brito Vieira, *The Elements of Representation*, 181; Crignon, ‘Representation and the Person of the State’, 69.

⁵⁶Crignon, ‘Representation and the Person of the State’, 69.

⁵⁷E.g. Runciman, ‘What Kind of Person’, 273; Brito Vieira, *The Elements of Representation*, 171–72; Abizadeh, ‘The Representation of Hobbesian Sovereignty’, 135–36, 146.

⁵⁸Personation by fiction is not *fake* personation or ‘misrepresentation’ – as in the case of swindlers, ‘when the Authority is feigned’ (i.e. non-existent) (L 16.8). Abizadeh, ‘The Representation of Hobbesian Sovereignty’, 133n. It bears noting that the idea of fictional representation is absent from the Latin *Leviathan* (cf. LL 16.1, LL 16.6).

⁵⁹Abizadeh, ‘The Representation of Hobbesian Sovereignty’, 135.

⁶⁰Runciman, ‘What Kind of Person’, 273.

⁶¹E.g. Fleming, ‘The Two Faces of Personhood’.

⁶²For further exploration of Hobbes’s non-territorial conception of the state, see Lee, ‘Sovereignty and Dominium’, 126–44.

⁶³Runciman, ‘What Kind of Person’, 273.

5. Conclusion

This article has shown that Hobbes radically altered his account of persons between *Elements/De Cive* and *Leviathan*. Accompanied by new theories of representation and authorization, *Leviathan*'s novel Ciceronian conception of person transforms Hobbes's account of how a collective acquires personality – but not quite in the way commentators have hitherto claimed. I have argued that the multitude is one person capable of action ('a commonwealth') insofar as the sovereign's actions can truly be attributed to each of his subjects (bound as each is to accept his actions as theirs). *Leviathan*'s theory of state-formation is thus structurally akin to that in the early works. For a multitude of natural-*j* persons to become one person, all that is needed is that citizens must obligate themselves to acknowledge the sovereign's will as theirs (whether by simply obeying his will or by owning his every action).

Incorporation of individuals under a common power/representative hence differs in kind from personation of (a) inanimate things (e.g. bridges); (b) irrational beings (e.g. madmen, children); (c) non-existing things (e.g. idols or figments of the brain); (d) and beings whose will cannot be directly known (e.g. the true God) (L 16.9–12). The last four categories do not contain entities composed of natural-*j* persons naturally endowed with private wills prone to diverge. The problem of how to turn into one corporate whole a pre-existing plurality of natural-*j* persons hence does not apply in (a)–(d). *Elements/De Cive* claim that true union presupposes a single will: incorporating a mob of natural-*j* persons thus requires mutual promises of simple obedience to unify private wills. *Leviathan*'s account is less demanding: having a common authorized spokesperson, representing each citizen individually, suffices to count as one person. Confusingly, the single person thus created ('the commonwealth') is in turn *also* represented by the sovereign (as no one else can rightly speak on its behalf). Yet the sovereign's representation of the commonwealth does not bring the commonwealth into existence. Personated systems of citizens are thus different in kind than the entities in categories (a)–(d), which do first acquire personality by being represented as such – and are, by fiction, 'created by the will of the state' (DH 15.3).

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